

25STCV17670 25STCV17670

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Case Number: 25STCV17670 Hearing Date: June 24, 2026 Dept: 307

21 TENTATIVE RULING 9:15 a.m., Wednesday, June 24, 2026

CHRISTINA

BALDWIN, et al. v. AMERICAN HONDA MOTOR CO., et al. [25STCV17670]

DEMURRER

TO THE THIRD AMENDED COMPLAINT OF DEFENDANT ALLSTATE NORTHBROOK INDEMNITY

COMPANY, ERRONEOUSLY SUED AS ALLSTATE INSURANCE COMPANY

MEET AND

CONFER: [UNCLEAR] Counsel

for Allstate fails to specify whether the parties met and conferred in-person,

telephonically, or by video conference in compliance with CCP 430.41.

TIMELINE:

Insurance dispute arising out of motor vehicle accident

6/23/2023: While Plaintiff Christina Baldwin ("Mrs.

Baldwin") was driving her vehicle, a 2022 Honda Accord (the "Vehicle"), she was

in a car accident with Defendant Matthew Zeigler ("Zeigler"), who ran a red light and crashed into Mrs. Baldwin's Vehicle. Mrs. Baldwin sustained multiple traumatic injuries because of the accident. Mrs. Baldwin's husband, Plaintiff Bruce Baldwin ("Mr. Baldwin") (collectively with Mrs. Baldwin, "Plaintiffs") is alleging loss of consortium.

7/24/2023: Plaintiffs' counsel formally notified

Mrs. Baldwin's property damage insurer— Defendant Allstate Northbrook Indemnity Company ("Allstate")— that it needed to preserve the Vehicle as evidence in connection with potential product liability claims. Allstate's adjuster acknowledged counsel's communication. In connection with the settlement of Mrs. Baldwin's property damage claim, Allstate acquired title to the Vehicle after it was deemed a "total loss."

12/13/2024: Allstate's claims representatives reiterated

in writing that the Vehicle would not be released or disposed of without notice and would be preserved for litigation purposes.

12/18/2024: Allstate called Plaintiffs' counsel

asking if the Vehicle could be disposed of and Plaintiffs' counsel advised Allstate to continue storing the Vehicle.

2/2025: Allstate unilaterally authorizes the

release and sale of the Vehicle for auction, without providing notice to

Plaintiffs or Plaintiffs' counsel.

6/18/2025: Plaintiffs file the Complaint. The

operative Third Amended Complaint ("TAC"), filed 1/6/2026, alleges causes of action for:

1. Strict Product Liability – Manufacturing Defect
2. Strict Product Liability – Design Defect
3. Negligence
4. Negligence – Failure to Recall
5. Breach of Implied Warranty of Merchantability
6. Negligence
7. Loss of Consortium
8. Promissory Estoppel
9. Negligent Misrepresentation
- 10.

Negligence

5/19/2026: Allstate files this Demurrer,

followed by Plaintiffs' Opposition (6/10/2026) and Allstate's Reply (6/16/2026).

TENTATIVE

RULING: DEMURRER OF DEFENDANT ALLSTATE NORTHBROOK INDEMNITY COMPANY is

SUSTAINED without leave to amend

Allstate

demurs to the eighth, ninth, and tenth causes of action in the TAC pursuant to

Code of Civil Procedure section 430.10, subdivision (e). This is Plaintiff's

third attempt to state a claim against Allstate. For the reasons discussed

below, Allstate's demurrer is SUSTAINED in its entirety without leave to amend.

A. 8th Cause of Action: Promissory

Estoppel — SUSTAINED without leave to amend

Plaintiff's

promissory estoppel claim is insufficiently pled. The elements of a promissory

estoppel claim are the same as a breach of contract claim, absent

consideration. (US Ecology, Inc. v. State of Cal. (2005)

129 Cal.App.4th 887, 903.) "[A] promise is an indispensable element of

the doctrine of promissory estoppel. The cases are uniform in holding that this

doctrine cannot be invoked and must be held inapplicable in the absence of a

showing that a promise had been made upon which the complaining party relied to

his prejudice....' ... The promise must, in addition, be 'clear and unambiguous

in its terms.'" (Aceves v. U.S. Bank, N.A. (2011) 192 Cal.App.4th

218, 226 (Aceves), quoting Garcia v. World Savings, FSB (2010)

183 Cal.App.4th 1031, 1044 (Garcia).) "To be enforceable, a promise need

only be 'definite enough that a court can determine the scope of

the duty[,] and the limits of performance must be sufficiently defined to provide a rational basis for the assessment of damages.” (Aceves, supra, 192 Cal.App.4th at p. 226, quoting Garcia, supra, 183 Cal.App.4th at p. 1045.)

In the

TAC, Plaintiff alleges that Allstate promised that the Vehicle would remain subject to the litigation hold and would not be released or disposed of while Plaintiff’s claims were pending or until further authorization from Plaintiff.

(TAC, ¶ 90.) Plaintiff alleges the promise was expressly evidenced by Allstate’s communications and impliedly demonstrated by its implementation and ongoing maintenance of the litigation hold over an extended period of time. (Id. ¶¶ 87, 90.)

This

Court has twice held that Plaintiff failed to plead a “clear and definite” promise by Allstate to indefinitely hold the Vehicle until either the conclusion of litigation or until Plaintiff otherwise gave permission to release the Vehicle. (Minute Order, 12/8/2025; Minute Order 4/1/2026.) In the TAC, Plaintiff has now simply removed the allegations referring to the December 13, 2024 email thread between Plaintiff and Allstate, which the Court found was insufficient to demonstrate the scope and terms of any alleged promise by

Allstate. Instead, Plaintiff now relies on Allstate's internal claim file,

which identifies the Vehicle as being on a "Seller Hold Program," states that

the Vehicle was "on hold due to litigation and cannot be released," and

indicates that the Vehicle was "released in error" and sold. (TAC, ¶¶ 88, 96.)

These allegations do not cure the previously identified pleading defects. In

fact, Plaintiff's reliance on Allstate's internal claim notes are even further

removed from the direct communications with Plaintiff which the Court

previously sought and it is unclear how Plaintiff could have relied on internal

claim notes that were not communicated in an outward promise to Plaintiff. At

most, the internal claim file appears to describe the now-omitted email

exchange with Plaintiff which this Court has already found to not contain any

forward-looking commitment to preserve the Vehicle into perpetuity. (*Granadino v. Wells Fargo Bank, N.A.* (2015)

236 Cal.App.4th 411, 417 [a promise is an assurance that a person will do or

will not do something, and not a mere representation of fact].)

Likewise,

Plaintiff's allegations that Allstate's representations "were communicated to

Plaintiff and/or her representatives during the claims process" and were

maintained in "follow-ups" remain impermissibly vague. (TAC, ¶¶ 87, 89.) These

vague allegations fail to provide the missing factual details related to the

extent of Allstate's direct communications with Plaintiff, the scope of

Allstate's purported duty to Plaintiff, and the terms of the purported promise, such as the limits or conditions on Allstate's performance, the basis for potential damages, or otherwise. Even if Plaintiff can show that some promise was made by Allstate regarding the preservation of their Vehicle, the issue remains that Plaintiff has not identified any specific promise, whether express or implied, that is "definite enough" such that the Court can determine the scope of the duty, the limits of performance, and a rational basis for the assessment of damages. (Aceves, supra, 192 Cal.App.4th at p. 226; see West v. JPMorgan Chase Bank, N.A. (2013) 214 Cal.App.4th 780, 804 [to succeed on a promissory estoppel claim, the promise need only be sufficiently clear and definite enough for a court to determine the scope of the duty, the limits of performance and a rational basis for assessing damages].)

As this

is Plaintiff's third attempt to cure the defects in her promissory estoppel claim, the Court finds that further opportunity to amend this cause of action would be futile. Accordingly, Allstate's demurrer to Plaintiff's eighth cause of action is SUSTAINED without leave to amend.

B. 10th Cause of Action: Negligence —

SUSTAINED without leave to amend

Plaintiff's

negligence claim is insufficiently pled. In the TAC, Plaintiff alleges that Allstate "undertook responsibility for the handling, management, and disposition of the Vehicle, including placing and maintaining the Vehicle on a litigation-related hold and controlling whether the Vehicle would be released or sold." (TAC, ¶ 115.) Plaintiff concludes that Allstate owed a duty to exercise reasonable care in preserving the Vehicle and in not releasing or disposing of it in a manner that would foreseeably impair Plaintiff's ability to investigate and pursue those claims. (Id. ¶ 118.) Plaintiff indicates that this alleged duty is not based on the obligation to preserve evidence, but from Allstate's assumption of control over the Vehicle and undertaking to maintain it on a litigation hold, thereby inducing Plaintiff's reliance and creating a foreseeable risk of harm if such undertaking was performed without reasonable care. (Id. ¶ 119.)

Although

Plaintiff contends that her negligence claim is not based on the preservation of evidence, it is not apparent how this claim is distinct from their previously pled "negligent undertaking" claim which this Court has already rejected. (Minute Order 4/1/2026; see TAC, ¶¶ 118-119.) California does not recognize an independent tort remedy for negligent spoliation of evidence but

instead contemplates the existence of such a duty arising from contract (either by mutual agreement or promissory estoppel). (Coprish v. Superior Court (2000) 80 Cal.App.4th 1081, 1091.) As Plaintiff fails to sufficiently plead the elements of promissory estoppel (or an express contractual basis to hold the Vehicle indefinitely during pending litigation), Plaintiff has not established a factual basis to support their conclusory allegations that Allstate owed Plaintiff a duty based on its mere possession of the Vehicle. Once again, Plaintiff's attempt to reframe Allstate's duty as arising from a "voluntary undertaking" is an improper circumvention of the rule against negligent spoliation claims.

Allstate

further argues that California does not recognize a tort cause of action for an insurer's negligent claim handling, and remedies for the insured arise under bad faith claims (i.e. tortious breach of contract) instead of traditional negligence. (Sanchez v. Lindsey Morden Claims Services, Inc. (1999) 72 Cal.App.4th 249, 254 ["negligence is not among the theories of recovery generally available against insurers"]; Benavides v. State Farm General Ins. Co. (2006) 136 Cal.App.4th 1241, 1251 ["The relationship between the parties is contractual."]; see also *Id.* at pp. 1253-1254, J. Mosk, concurring ["Plaintiff could not recover for negligence in investigating

the insurance claim because '[n]egligence is not among the theories of recovery generally available against insurers. Delay or failure to pay policy benefits may be actionable as a breach of contract or bad faith, not negligence.'"].)

Plaintiff does not submit any contrary authority.

In this

case, any action taken by Allstate was taken in the scope of Allstate's role as

Plaintiff's insurer, pursuant to the alleged property damage insurance policy

between the parties. (See TAC, ¶ 22.) Plaintiff's allegations that Allstate

failed to manage and preserve the Vehicle while it was within Allstate's

possession simply reflect a mishandling of Plaintiff's insurance claim (i.e. an

internal processing error) for which liability is limited to a bad faith

insurance claim rather than tort liability. Thus, even to the extent that Plaintiff's

negligence claim is not based on a theory of spoliation of evidence, Plaintiff

is simply attempting to repackage their breach of the implied covenant claim

pled in the First Amended Complaint, which this Court already dismissed, and

which Plaintiff did not attempt to replead in the Second Amended Complaint.

(Minute Order, 12/8/2025; see Second Amended Complaint, generally.)

Accordingly,

Allstate's demurrer to Plaintiff's tenth cause of action is SUSTAINED without

leave to amend.

C. 9th Cause of Action: Negligent

Misrepresentation — SUSTAINED without leave to amend

Plaintiff's

negligence misrepresentation claim is insufficiently pled. In the TAC, Plaintiff alleges that in the course of handling her insurance claim, Allstate "made representations to Plaintiff, both expressly and through its course of conduct, regarding the status and handling of the Vehicle, including that the Vehicle was currently subject to an active litigation hold and was not eligible for release under that hold." (TAC, ¶ 101.) Plaintiff relies on the same representations identified in her promissory estoppel claim. (Id. ¶¶ 102-103.)

First,

Allstate argues that Plaintiff fails to demonstrate that the representations made by Allstate about the status of the Vehicle's then-existing litigation hold were not false when made. "The law is well established that actionable misrepresentations [whether fraudulent or negligent] must pertain to past or existing material facts." (Cansino v. Bank of America (2014) 224 Cal.App.4th 1462, 1469; see CACI 1903.) Thus, at minimum, Allstate's purported liability for negligently misrepresenting facts regarding the Vehicle's litigation hold must be limited to misrepresentations regarding the

then-current state of the litigation hold and the status of the Vehicle. Here,

Plaintiff alleges that Allstate communicated and reinforced the status of the Vehicle through its ongoing monitoring and maintenance of the litigation hold over time, including repeated follow-ups confirming that the hold remained active. (TAC, ¶ 103.) Plaintiff alleges that Allstate subsequently authorized the release of the hold. (Id. ¶ 106.) Taken together, the allegations on the face of the TAC reflect a series of communications to Plaintiff regarding the then-current status of the Vehicle on a litigation hold, which was ostensibly true at the time the communications were made to Plaintiff. Indeed, Plaintiff admits that the Vehicle was erroneously released after Allstate's communicated with Plaintiff about the status of the Vehicle.

Moreover, to the extent that Plaintiff's Opposition attempts to frame the "misrepresentation" as a representation that the Vehicle "would remain preserved," such representations about future conduct are not an actionable basis for negligent misrepresentation claims. (See Opp., at p. 6:4.)

In the Court's view, Plaintiff's negligent misrepresentation claim is essentially duplicative of both her promissory estoppel and negligence theories of liability, which independently fail. The negligent conduct underlying Plaintiff's negligent misrepresentation claim occurred after the alleged

communications about the Vehicle's status, reflecting an internal error and a mishandling of Plaintiff's insurance claim that must be asserted as a bad faith insurance claim, rather than a tort claim independent of the insurance policy itself. Further, any alleged "misrepresentations" to Plaintiff are identical to the purported "promise" that Allstate would preserve the Vehicle indefinitely.

As the Court discusses above, such allegations are not pled with sufficient factual detail to state a claim for promissory estoppel, let alone to overcome the heightened pleading requirement for negligent misrepresentation.

In any event, the Court did not grant Plaintiff leave to add a cause of action for negligent misrepresentation when ruling on Allstate's prior demurrers. (Minute Order, 12/8/2025; Minute Order 4/1/2026.) "Following an order sustaining a demurrer ... with leave to amend, the plaintiff may amend his or her complaint only as authorized by the court's order." (Harris v. Wachovia Mortgage, FSB (2010) 185 Cal.App.4th 1018, 1023.) "The plaintiff may not amend the complaint to add a new cause of action without having obtained permission to do so, unless the new cause of action is within the scope of the order granting leave to amend." (Ibid.) Plaintiff's theory of negligent misrepresentation does not fall within the scope of the order granting leave to amend Plaintiff's promissory estoppel/negligent

performance of voluntary undertaking theory as pled in the Second Amended Complaint.

Accordingly,

Allstate's demurrer to Plaintiff's ninth cause of action is SUSTAINED without leave to amend.

Defendant

Allstate Northbrook Indemnity Company is to serve notice of ruling. This tentative ruling ("TR") shall be the order of the Court unless changed at the hearing and shall by this reference be incorporated into the Minute Order. TR emailed to counsel & posted on 6/23/26 at 11:30 a.m.